.2 in the absence of a building contract, the keel of which is laid or which is at a similar stage of construction on or after 1 July 2027; or

.3 the delivery of which is on or after 1 January 2031.

5.2 The standards set forth in paragraph 5.1.1 of this regulation shall not apply to:

.1 a marine diesel engine installed on a ship with a length (L), as defined in regulation 1.19 of Annex I to the present Convention, of less than 24 metres when it has been specifically designed, and is used solely, for recreational purposes; or

.2 a marine diesel engine installed on a ship with a combined nameplate diesel engine propulsion power of less than 750 kW if it is demonstrated, to the satisfaction of the Administration, that the ship cannot comply with the standards set forth in paragraph 5.1.1 of this regulation because of design or construction limitations of the ship; or

.3 a marine diesel engine installed on a ship constructed prior to 1 January 2021 of less than 500 gross tonnage, with a length (L), as defined in

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SOURCE: MEPC.403(83).pdf
construction limitations of the ship; or

.3 a marine diesel engine installed on a ship constructed prior to 1 January 2021 of less than 500 gross tonnage, with a length (L), as defined in
regulation 1.19 of Annex I to the present Convention, of 24 m etres or over when it has been specifically designed, and is used solely, for recreational purposes.

5.3 The tier and on/off status of marine diesel engines installed on board a ship to which paragraph 5.1 of this regulation applies which are certified to both Tier II and Tier III or which are certified to Tier II only shall be recorded in such logbook or electronic record book 24 as prescribed by the Administration at entry into and exit from a NOx Tier III emission control area, or when the on/off status changes within such an area, together with the date, time and position of the ship.

5.4 Emissions of nitrogen oxides from a marine diesel engine subject to paragraph 5.1 of this regulation that occur immediately following building and sea trials of a newly constructed ship, or before and following converting, repairing, and/or maintaining the ship, or maintenance

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this regulation that occur immediately following building and sea trials of a newly constructed ship, or before and following converting, repairing, and/or maintaining the ship, or maintenance
or repair of a Tier II engine or a dual fuel engine when the ship is required to not have gas fuel or gas cargo on board due to safety requirements, for which activities take place in a shipyard or other repair facility located in a NOx Tier III emission control area, are temporarily exempted provided the following conditions are met:

.1 the engine meets the Tier II NOx limits; and

.2 the ship sails directly to or from the shipyard or other repair facility, does not load or unload cargo during the duration of the exemption, and follows any additional specific routeing requirements indicated by the port State in which the shipyard or other repair facility is located, if applicable.

24 Refer to the Guidelines for the use of electronic record books under MARPOL (resolution MEPC.312(74)).
RESOLUTION MEPC.403(83) (adopted on 11 April 2025)
AMENDMENTS TO THE 2022 GUIDELINES ON SURVEY AND CERTIFICATION OF THE ENERGY EFFICIENCY DESIGN INDEX (EEDI)MEPC 83/17/Add.1

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SOURCE: MEPC.403(83).pdf
RESOLUTION MEPC.403(83) (adopted on 11 April 2025)
AMENDMENTS TO THE 2022 GUIDELINES ON SURVEY AND CERTIFICATION OF THE ENERGY EFFICIENCY DESIGN INDEX (EEDI)MEPC 83/17/Add.1
Annex 11, page 27

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5.5 The exemption described in paragraph 5.4 of this regulation applies only for the following period:

.1 for a newly constructed ship, the period beginning at the time the ship is delivered from the shipyard, including sea trials, and ending at the time the ship directly exits the NOx Tier III emission control area(s) or, with regard to a ship fitted with a dual fuel engine, the ship directly exits the NO x Tier III emission control area(s) or proceeds directly to the nearest gas fuel bunkering facility appropriate to the ship located in the NOx Tier III emission control area(s);

.2 for a ship with a Tier II engine undergoing conversion, maintenance or repair, the period beginning at the time the ship enters the NO x Tier III emission control area(s) and proceeds directly to the shipyard or other repair facility, and ending at the time the ship is released from the shipyard or other repair

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the period beginning at the time the ship enters the NO x Tier III emission control area(s) and proceeds directly to the shipyard or other repair facility, and ending at the time the ship is released from the shipyard or other repair facility and directly exits the NO x Tier III emission control area (s) after performing sea trials, if applicable; or

.3 for a ship with a dual fuel engine undergoing conversion, maintenance or repair, when the ship is required to not have gas fuel or gas cargo on board due to safety requirements, the period beginning at the time the ship enters the NOx Tier III emission control area(s) or when it is degassed in the NO x Tier III emission control area(s) and proceeds directly to the shipyard or other repair facility, and ending at the time when the ship is released from the

shipyard or other repair facility and directly exi ts the NO x Tier III emission control area(s) or proceeds directly to the nearest gas fuel bunkering facility appropriate to the ship located in the NOx Tier III emission control area(s).

Emission control area

6 For the purposes of this regulation, a NO x Tier III emission control area shall be any

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SOURCE: MEPC.403(83).pdf
appropriate to the ship located in the NOx Tier III emission control area(s).

Emission control area

6 For the purposes of this regulation, a NO x Tier III emission control area shall be any sea area, including any port area, designated by the Organization in accordance with the criteria and procedures set forth in appendix III. The NOx Tier III emission control areas are:

.1 the North American Emission Control Area, which means the area described by the coordinates provided in appendix VII to this Annex;

.2 the United States Caribbean Sea Emission Control Area, which means the area described by the coordinates provided in appendix VII to this Annex;

.3 the Baltic Sea area as defined in regulation 1.11.2 of Annex I of the present Convention;

.4 the North Sea area as defined in regulation 1.14.6 of Annex V of the present Convention;

.5 the Canadian Arctic Emission Control Area, which means the area described by the coordinates provided in appendix VII to this Annex;

.6 the Norwegian Sea as defined in regulation 13.9.4 of Annex II of the present Convention; and

.7 the North -East Atlantic Emission Control Area, which means the area

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by the coordinates provided in appendix VII to this Annex;

.6 the Norwegian Sea as defined in regulation 13.9.4 of Annex II of the present Convention; and

.7 the North -East Atlantic Emission Control Area, which means the area described by the coordinates provided in appendix VII to this Annex.

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Marine diesel engines installed on a ship constructed prior to 1 January 2000

7.1 Notwithstanding paragraph 1.1.1 of this regulation, a marine diesel engine with a power output of more than 5,000 kW and a per cylinder displacement at or above 90 L installed on a ship constructed on or after 1 January 1990 but prior to 1 January 2000 shall comply with the emission limits set forth in paragraph 7.4 of this regulation, provided that an approved method25 for that engine has been certified by an Administration of a Party and notification of such certification has been submitted to the Organization by the certifying Administration. 26

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method25 for that engine has been certified by an Administration of a Party and notification of such certification has been submitted to the Organization by the certifying Administration. 26 Compliance with this paragraph shall be demonstrated through one of the following:

.1 installation of the certified approved method, as confirmed by a survey using the verification procedure specified in the approved method file, including appropriate notation on the ship's IAPP Certificate of the presence of the approved method; or